



CHAPTER lxxvii.

An Act to confirm a Provisional Order under the Private Legislation Procedure (Scotland) Act 1899 relating to Arbroath Corporation Water. A.D. 1905.
[30th June 1905.]

WHEREAS His Majesty's Secretary for Scotland has made the Provisional Order set forth in the schedule hereunto annexed under the provisions of the Private Legislation Procedure (Scotland) Act 1899 and it is requisite that the said Order should be confirmed by Parliament: 62 & 63 Vict. c. 47.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Provisional Order contained in the schedule hereunto annexed shall be and the same is hereby confirmed. Confirmation of Order in schedule.

2. This Act may be cited as the Arbroath Corporation Water Order Confirmation Act 1905. Short title.

A.D. 1905.

S C H E D U L E.

ARBROATH CORPORATION WATER.

Provisional Order to authorise the Provost Magistrates and Councillors of the Burgh of Aberbrothock or Arbroath to construct and maintain additional waterworks and for other purposes.

WHEREAS by the Arbroath Corporation Water Order 1904 (hereinafter called "the Order of 1904") the provost magistrates and councillors of the burgh of Aberbrothock or Arbroath in the county of Forfar (hereinafter called "the Corporation") were empowered to provide an additional supply of water to the said burgh and for that purpose to acquire lands springs streams waters and other property and construct and maintain the works by the Order of 1904 authorised and therein described :

And whereas by section 11 of the Order of 1904 it was inter alia provided that the Corporation should apply for and use their best efforts to obtain an Order for authority to make and maintain a reservoir for the purposes of compensation water only capable of storing at least sixty million gallons of water and having a drainage area sufficient within the drainage area of the Noran Water to guarantee a quantity of compensation water of not less than six hundred and twenty-five thousand gallons during the twenty-four hours of every day for the one million two hundred and fifty thousand gallons taken for the supply purposes of the Corporation from the said stream :

And whereas it is expedient that the Corporation should be empowered to construct and maintain the compensation reservoir and other works hereinafter described and to acquire lands springs streams waters servitudes and other property in connection therewith :

And whereas it is expedient that the Corporation should be empowered to abandon the construction of certain portions of the Works No. 1 and No. 3 and the Work No. 7 authorised by the Order of 1904 which will be rendered unnecessary by the construction of the works by this Order authorised :

And whereas it is expedient that the Corporation should be authorised to raise further money by borrowing for the purposes of this Order and of their water undertaking :

And whereas plans and sections showing the lines and levels of the works authorised by this Order and also books of reference containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands springs streams waters and other property required or which may be taken for the purposes or under the powers of this Order were duly deposited in the offices at Forfar Dundee and Arbroath respectively of the principal sheriff clerk of the county of Forfar and are hereinafter respectively referred to as the deposited plans sections and books of reference : A.D. 1905.

And whereas the purposes aforesaid cannot be effected without an Order of the Secretary for Scotland confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1899 :

Now therefore in pursuance of the powers contained in the last-mentioned Act the Secretary for Scotland orders as follows :—

1. This Order may be cited for all purposes as the Arbroath Corporation Water Order 1905 and shall come into operation at the date of the passing of the Act confirming the same which date is referred to in this Order as “the commencement of this Order” Short title and commencement of Order.
 The Order of 1904 and this Order may be cited together as the Arbroath Corporation Water Orders 1904 and 1905.

2. The following Acts and parts of Acts (so far as the same respectively are applicable for the purposes and are not inconsistent with the provisions of this Order) are hereby incorporated with and form part of this Order :— Incorporation of Acts.

The Lands Clauses Acts :

The Waterworks Clauses Act 1847 except the clauses and provisions with respect to the communication pipes to be laid by the Undertakers and with respect to the amount of profit to be received by the Undertakers when the waterworks are carried on for their benefit and except the words “with the consent in writing of the owner or “reputed owner of any such house or of the agent of such “owner” in clause 44 of that Act and also with the exception of clauses 68 70 71 and 72 Provided that the clauses of the Waterworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes shall apply to the lines of pipes which may be laid under this Order :

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The Waterworks Clauses Act 1863 :

The clauses and provisions of the Railways Clauses Consolidation (Scotland) Act 1845 with respect to the temporary occupation of lands near the railway during the construction thereof and the crossing of roads and other interference therewith And in construing the said clauses and provisions "the company" means the Corporation "the railway" means the reservoir authorised by this Order and the works immediately connected therewith and "the centre of the railway" means any part of those works.

Interpretation.

3. In this Order the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith have the same respective meanings unless there be something in the subject or context repugnant to such construction In this Order and in the Acts wholly or partially incorporated with this Order—

"The burgh" means the burgh of Aberbrothock or Arbroath ;

"The Corporation" means the provost magistrates and councillors of the burgh ;

"The Undertakers" "the company" and "the promoters of the undertaking" mean the Corporation ;

"The water undertaking" means the waterworks and water undertaking authorised by the Order of 1904 so far as the same are not authorised to be abandoned by this Order and also the waterworks and water undertaking authorised by this Order ;

"The Order of 1904" means the Arbroath Corporation Water Order 1904 ;

"The Police Acts" means and includes the Burgh Police (Scotland) Acts 1892 to 1903 and Acts amending and extending the same ;

"The sheriff" means the sheriff of the county of Forfar or any of his substitutes.

Power to make water-works.

4. The Corporation subject to the provisions of this Order may make and maintain in the lines and situations and according to the levels shown on the deposited plans and sections the works hereinafter described or some of them together with all necessary and proper embankments dams weirs channels sluices outlets outfalls catch-water drains cuts culverts aqueducts tunnels bridges roads approaches ways tramways wells tanks basins gauges

filters filtering apparatus stand-pipes main and distributing pipes junctions valves meters pumps pumping stations engines houses buildings works apparatus and conveniences in connection with the said works hereinafter described or any of them or necessary or convenient for diverting taking collecting storing conducting distributing and regulating the supply of water by the Corporation and for diverting any sewerage or drains which might pollute or otherwise injuriously affect the same and for conducting inspecting maintaining repairing cleansing managing or using the said several works and may purchase enter upon take hold and use compulsorily or by agreement such of the lands springs streams waters and other property delineated on the deposited plans and described in the deposited books of reference as may be required for such purposes.

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5. The works hereinbefore referred to and authorised by this Order are as follows :—

Description
of works.

- (1) A compensation reservoir (Work No. 1) on the stream known as the Noran Water and on the lands adjacent thereto to be wholly situate in the parish of Tannadice and county of Forfar commencing at a point on the Noran Water one thousand one hundred and eighty yards or thereby measured in a northerly direction from the north-east corner of Redheugh farm buildings and terminating by an embankment or dam to be formed across the said Noran Water at a point seven hundred and ten yards or thereby measured in a north-easterly direction from the north-east corner of the said Redheugh farm buildings which embankment or dam will commence at a point sixty-five yards or thereby south-westward and will terminate at a point twenty yards or thereby eastward both measured from the centre of the said Noran Water where it will be crossed by said embankment or dam :
- (2) A conduit or line of pipes (Work No. 2) to be wholly situate in the parish of Tannadice and county of Forfar commencing in the bed or channel of the stream known as the Noran Water at a point one thousand four hundred and seventy yards or thereby measured in a northerly direction from the north-east corner of Redheugh farm buildings and terminating by a junction with the conduit or line of pipes (Work No. 1) authorised by the Order of 1904 at a point three

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hundred yards or thereby measured in a westerly direction from the north-west corner of Easter Ogil House :

- (3) A conduit or line of pipes (Work No. 3) to be wholly situate in the parish of Guthrie and county of Forfar commencing in the public road leading from Guthrie Railway Station by Hilton of Guthrie to the high road from Forfar to Montrose and known as the Guthrie and Hilton Road by a junction with the conduit or line of pipes (Work No. 3) authorised by the Order of 1904 at a point two hundred and sixty-seven yards or thereby measured in a northerly direction from the north-east corner of Hilton of Guthrie farm steading and terminating in the public road known as the Guthrie and Hilton Road by a junction with the said Work No. 3 authorised by the Order of 1904 at a point eight hundred and sixty-five yards or thereby measured in a south-easterly direction from the north-east corner of the said Hilton of Guthrie farm steading.

Power to
deviate
laterally and
vertically.

6. The Corporation may in constructing the works by this Order authorised deviate laterally from the lines thereof as shown on the deposited plans to the extent of the limits of lateral deviation respectively shown thereon and when the line of any work is shown on the said plans as passing along any road and no limits of lateral deviation are marked thereon the Corporation may in constructing such works deviate laterally to any extent within the boundaries of such road and may deviate vertically from the levels of the various works as shown on the deposited sections to any extent not exceeding in the case of the reservoir (Work No. 1) hereinbefore described three feet upwards and five feet downwards and not exceeding five feet downwards or upwards as regards the other works by this Order authorised. Provided that in the exercise of such powers of vertical deviation the Corporation shall not except in the case of crossing bridges or culverts or streams lay above the ground any pipe unless and except so far as is shown on the deposited sections. Provided further that the Corporation shall not construct the embankment of the said reservoir of a greater height above the general surface of the ground than that shown on the deposited sections in respect of the corresponding embankment or wall and three feet in addition. Provided further that as far as practicable the conduits or lines of pipes authorised by

[5 EDW. 7.] *Arbroath Corporation Water Order* [Ch. lxxvii.]
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this Order and shown on the deposited plans as passing along any roads shall be laid at the side of such roads and clear of the metalled part thereof. A.D. 1905.
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7. The Corporation may and shall abandon the construction of the following works (that is to say) :—
- (First) So much of the conduit or line of pipes (Work No. 1) authorised by the Order of 1904 as lies between the commencement of that work as described in the Order of 1904 and the termination hereinbefore described of the intended conduit or line of pipes (Work No. 2) by this Order authorised ;
- (Second) So much of the conduit or line of pipes (Work No. 3) authorised by the Order of 1904 as lies between the points of commencement and termination hereinbefore described of the intended conduit or line of pipes (Work No. 3) by this Order authorised ; and
- (Third) The road of access (Work No. 7) authorised by the Order of 1904.

Abandonment of certain works authorised by Order of 1904.

8. The abandonment by the Corporation under the authority of this Order of the works hereinbefore authorised to be abandoned shall not prejudice or affect the right of the owner or occupier of any land to receive compensation for any damage occasioned by the entry of the Corporation on such land for the purpose of surveying and taking levels or probing or boring to ascertain the nature of the soil or setting out of the lines of works and shall not prejudice or affect the right of the owner or occupier of any land which has been temporarily occupied by the Corporation to receive compensation for such temporary occupation or for any loss damage or injury which has been sustained by such owner or occupier by reason thereof or of the exercise as regards such land of any of the powers contained in the Order of 1904 or in the Acts incorporated therewith.

Compensation for damage to land by entry &c. for purposes of works abandoned.

9. Where before the commencement of this Order any contract has been entered into or notice given by the Corporation for the purchasing of any land for the purposes of or in relation to any portion of the works authorised by the Order of 1904 and authorised to be abandoned by this Order the Corporation shall be discharged from all liability to purchase or to complete the purchase of any such land but notwithstanding full compensation shall be made by the Corporation to the owners and occupiers or

Compensation to be made in respect of works abandoned.

A.D. 1905. — other persons interested in such land for all injury or damage sustained by them respectively by reason of the purchase not being completed pursuant to the contract or notice and the amount and application of the compensation shall be determined in manner provided by the Lands Clauses Acts for determining the amount and application of compensation paid for lands taken under the provisions thereof.

Power to
alter roads
&c. tempo-
rarily.

10. For the purposes and during the execution of the works which the Corporation are by this Order authorised to make and in maintaining the same and subject to the provisions of this Order the Corporation may open break up or cross over or under alter divert or stop up and use temporarily any highways roads streets lanes paths passages bridges rivers streams railways culverts sewers drains watercourses gas pipes and water pipes and telegraphic electric or telephonic apparatus or other mains and pipes in any of the lands shown on the deposited plans and specified in the deposited books of reference which they may from time to time find it expedient for any of those purposes so to interfere with providing when possible a proper temporary substitute before interrupting the traffic on any such highway road or street or the flow of gas water sewage or electricity in any such sewer drain watercourse main pipe or apparatus and making full compensation to all persons injuriously affected thereby Provided that nothing in this section shall extend to authorise any interference with electric apparatus or other property of His Majesty's Postmaster-General or with any works of any undertakers within the meaning of the Electric Lighting Acts 1882 to 1902 to which the provisions of section 15 of the Electric Lighting Act 1882 apply.

Repeal of sec-
tions 10 and 11
of Order of
1904.

11. Section 10 (Power to take water) and section 11 (Com-
pensation water) of the Order of 1904 are hereby repealed.

Power to
take water.

12. The Corporation from and after the construction and com-
pletion of the compensation reservoir (Work No. 1) by this Order
authorised may by means of the works by this Order authorised
and of the works authorised by the Order of 1904 so far as not by
this Order authorised to be abandoned at or above the termination
of the said Work No. 1 intercept divert take impound appropriate
store use and distribute for the purposes of the Order of 1904
and this Order and the compensation water by this Order provided
the waters of the stream called the Noran Water and all affluents
streams springs and waters flowing into or arising within the said

stream above the said termination of Work No. 1 and from the works aforesaid or some of them may supply water within the limits of the Order of 1904 or to such places beyond the same as are authorised by the Order of 1904 for the domestic and other purposes for which the Corporation are by the Order of 1904 and this Order and the Police Acts authorised to supply water. Provided that the Corporation shall not take any greater quantity of water for supply purposes from the said stream than one million two hundred and fifty thousand gallons in any one day of twenty-four hours and that nothing in the Order of 1904 or in this Order contained shall authorise the Corporation to intercept divert take impound appropriate store use or distribute as aforesaid the water of any affluents of the Noran Water flowing into the same below the said termination of Work No. 1.

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13.—(1) The Corporation shall as soon as the compensation reservoir (Work No. 1) by this Order authorised is completed and before any of the water authorised to be taken by this Order shall be taken by the Corporation for the supply purposes of the Order of 1904 and this Order discharge or allow to flow as compensation water therefrom a uniform and continuous flow of water of not less than six hundred and twenty-five thousand gallons during the twenty-four hours of every day for the one million two hundred and fifty thousand taken for the supply purposes of the Corporation from the said stream.

Compensation
water.

(2) Such compensation water shall if and when discharged be deemed to be full compensation to millowners riparian proprietors and other persons interested in the waters flowing down the Noran Water below the said reservoir for the said quantity of one million two hundred and fifty thousand gallons taken under the provisions of this Order for supply purposes.

(3) The Corporation shall for the purpose of ascertaining the amount of compensation water to be daily discharged construct and maintain immediately below the foot of the outer slope of the embankment or dam of the said reservoir a suitable and sufficient recording and measuring gauge or other apparatus over or through which the compensation water shall flow or be discharged into the Noran Water and such gauge or other apparatus shall be open to the inspection and examination at all reasonable times of all persons having an interest in the said compensation water or of persons duly authorised by them on their behalf and also of the District Fishery Board of the River South Esk.

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(4) The Corporation shall also for the purpose of ascertaining the quantity of water daily appropriated from the said stream for the purposes of water supply construct and maintain at a point or points to be approved by William Robertson Copland Civil Engineer Glasgow whom failing an engineer to be appointed by the sheriff suitable and sufficient recording and measuring gauges or other apparatus over or through which such water shall flow or be discharged and such measuring gauges or other apparatus shall be open to the inspection and examination at all reasonable times of all persons having an interest in the said compensation water or of persons duly authorised by them on their behalf and also of the District Fishery Board of the River South Esk.

(5) If at any time such measuring gauges or other apparatus or any of them shall be out of repair or unfit for the purpose for which they were intended the same shall forthwith be put into a proper and efficient state of repair at the expense of the Corporation and if the Corporation shall fail to repair such gauges or other apparatus or any of them within fourteen days after notice given to them by or on behalf of any of the persons having an interest in the water as aforesaid any person so interested may cause such works to be done and performed in connection with the said measuring gauges or other apparatus as shall be necessary for placing them in a proper and efficient state of repair and to recover the expense so incurred with full costs of suit against the Corporation in any court of competent jurisdiction.

Saving of
rights of
burgh of
Forfar.

14. The rights and privileges acquired under the Forfar Water Act 1878 or otherwise by the provost magistrates and councillors of the burgh of Forfar shall be as they are hereby specially reserved and declared to be unaffected by any provisions in this Order contained.

Power to
agree for ser-
vitudes &c.

15. The Corporation may subject to the provisions of this Order take by agreement and any person by the Lands Clauses Acts or otherwise enabled to sell and convey or dispose of lands may grant to them any estate servitude interest right or privilege (not being a servitude of water in which persons other than the grantors have an interest) in over affecting or belonging to lands at a price or yearly rent feu duty or otherwise but in the case of a person not enabled otherwise than by the said Acts to sell lands then subject and according to the provisions relative to the taking of lands by agreement contained in the said Acts and for the purposes

of this section any such estate servitude interest right or privilege shall be deemed to be lands within the meaning of those Acts. A.D. 1905.

16. The Corporation may from time to time for the purposes of the Order of 1904 and this Order purchase by agreement in addition to lands hereby authorised to be taken by compulsion any additional lands not exceeding in the whole ten acres but nothing in this Order shall exonerate the Corporation from any action interdict or other proceeding for nuisance in the event of any nuisance being caused or permitted by them upon any land taken under the powers of this section and no house or building shall be erected on any such lands other than any houses or buildings which may be required in connection with the water undertaking. Lands for extraordinary purposes.

17.—(1) The Corporation shall not under the powers of this Order purchase or acquire in any district within the meaning of the Public Health (Scotland) Act 1897 ten or more houses which on the fifteenth day of December last were occupied either wholly or partially by persons belonging to the labouring class as tenants or lodgers or except with the consent of the Secretary for Scotland ten or more houses which were not so occupied on the said fifteenth day of December but have been or shall be subsequently so occupied. Restriction on taking houses of labouring class.

(2) If the Corporation acquire or appropriate any house or houses in contravention of the foregoing provision they shall be liable to a penalty of five hundred pounds in respect of every such house which penalty shall be recoverable by the Secretary for Scotland by action in the Court of Session and shall be carried to and form part of the Consolidated Fund of the United Kingdom Provided that the Court may if it think fit reduce such penalty.

(3) For the purposes of this section the expression "house" means any house or part of a house occupied as a separate dwelling and the expression "labouring class" means mechanics artisans labourers and others working for wages hawkers costermongers persons not working for wages but working at some trade or handicraft without employing others except members of their own family and persons other than domestic servants whose income does not exceed an average of thirty shillings a week and the families of any such persons who may be residing with them.

18. The powers of the Corporation for the compulsory purchase of lands for the purposes of this Order shall cease after the expiration of three years after the commencement of this Order. Period for compulsory purchase of lands.

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Period for
completion
of works.

19. If the works authorised by this Order are not completed within six years from the commencement of this Order then on the expiration of that period the powers by this Order granted to the Corporation for executing any works not so completed or in relation thereto shall cease except as to so much thereof as is then completed.

Powers for
repair of
aqueducts
and tempo-
rary dis-
charge of
water into
streams.

20. For the purpose of executing any necessary work of repair or of cleansing or of examining any of the works by this Order authorised or any tank aqueduct or conduit belonging to the Corporation the Corporation may cause the water in any such works to be temporarily discharged into any available stream or watercourse. In the exercise of the power conferred by this section the Corporation shall do as little damage as may be and shall make full compensation to all persons for any damage sustained by them by reason or in consequence of the exercise of such power the amount of compensation to be settled in case of difference by arbitration.

For protec-
tion of Mrs.
Williamson
and
Archibald
Williamson
of Glenogil.

21. Notwithstanding anything in this Order the Corporation shall not (unless otherwise agreed between them and Mrs. Annie Guthrie or Williamson and Archibald Williamson of Glenogil their heirs or successors) acquire take hold or use under the powers of this Order any lands water or other property of the said Annie Guthrie or Williamson or Archibald Williamson their heirs or successors or any servitudes or rights in or over the same other than those described or referred to in a minute of agreement between the said Archibald Williamson and Mrs. Annie Guthrie or Williamson and the Corporation dated the thirteenth eighteenth and twenty-eighth days of March one thousand nine hundred and five and in accordance with the terms and conditions of the said agreement.

Power to
borrow
additional
money.

22. In addition to any money which the Corporation have borrowed or raised or are authorised to borrow or raise under the Police Acts or the Order of 1904 the Corporation may from time to time under the authority of this Order borrow on mortgage or otherwise any sums required for constructing the works authorised by this Order and for the purchase of lands and other property and rights and servitudes therein and for the other purposes of this Order and for paying the costs charges and expenses of and incident to the preparing and applying for and the issue of this Order and the confirmation thereof by Parliament or otherwise in relation thereto not exceeding in the whole the sum of

twenty thousand pounds and may make and grant mortgages of the water assessment and rates rents and charges by the Order of 1904 and this Order authorised in security of the moneys so borrowed and interest thereon and any sums so to be borrowed may be borrowed on terms of the repayment thereof by instalment or otherwise. A.D. 1905.

23. The following sections of the Order of 1904 shall be and are hereby made applicable to the money to be borrowed or raised by the Corporation under the authority of this Order in the same manner as if such money had been borrowed or raised under the authority of the Order of 1904 (that is to say):— Certain sections of Order of 1904 to apply to additional money to be borrowed.

Section 51 (Corporation may re-borrow):

Section 53 (Form of mortgage):

Section 54 (Manner in which mortgages and orders on bank account to be signed and executed):

Section 55 (Transfers of mortgages):

Section 56 (Mortgages of rates to be personal estate):

Section 57 (Discharge of mortgages):

Section 58 (Period of repayment):

Section 59 (Mode of repayment):

Section 60 (Sinking fund):

Section 62 (Annual return to Secretary for Scotland with respect to sinking fund):

Section 63 (Application of moneys borrowed):

Section 64 (Protection of lender from inquiry).

24. Section 65 (For appointment of a judicial factor) of the Order of 1904 is hereby repealed but without prejudice to any appointment heretofore made or to any proceedings pending at the commencement of this Order. Repeal of section 65 of Order of 1904.

25. The mortgagees of the Corporation may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a judicial factor In order to authorise the appointment of a judicial factor in respect of arrears of principal the amount owing to the mortgagees by whom the application for a judicial factor is made shall not be less than five thousand pounds. For appointment of a judicial factor.

26. All mortgages granted by the Corporation in pursuance of the Order of 1904 prior to and subsisting at the commencement of this Order shall during the continuance thereof have priority over all mortgages that may be granted in pursuance of the Order Priority and ranking of securities.

A.D. 1905. of 1904 subsequent to the commencement of this Order or in pursuance of this Order and all mortgages granted subsequent to the commencement of this Order shall rank together *pari passu* without any preference or priority the one over the other.

Estimates
 &c. by Cor-
 poration to
 include pur-
 poses of this
 Order.

27. The estimate required to be made and the water assessment rates rents charges and other water revenues authorised and required to be imposed levied charged collected and recovered by the Corporation under and for the purposes of the Order of 1904 shall be made imposed levied charged collected and recovered and the Corporation are hereby authorised and required to make impose levy charge collect and recover the same so that such water assessment rates rents charges and other water revenues shall not only include and be sufficient for the purposes of defraying the annual sums or expenditure mentioned in section 42 (Corporation to estimate annual sum required) of the Order of 1904 but also the interest and instalments of any money that may be borrowed due or raised under the provisions and for the purposes of this Order and the payment to the sinking and reserve funds and the expense of maintaining and managing or extending the reservoir mains pipes and other works authorised by this Order and all other annual expenditure arising out of the exercise of the powers by this Order conferred.

Application
 of revenue.

28. The proceeds of the water assessment rates rents and charges levied imposed received and collected by the Corporation under the authority of the Order of 1904 and of this Order and the other income of the Corporation for the supply of water shall be applied not only in the manner and to the purposes mentioned in the Order of 1904 but also in the like manner and to the same purposes so as to include all such costs charges expenses interest contributions to sinking fund and other expenditure so far as the same are caused or increased by or are attributable to the works authorised by and the carrying out of the purposes of this Order.

Works to
 form part of
 water under-
 taking.

29. Subject to the provisions of this Order the existing waterworks of the Corporation and the works authorised to be constructed under the authority of the Order of 1904 and the works authorised to be constructed under the authority of this Order shall for all purposes whatsoever be and be deemed to be part of the water undertaking.

For pro-
 tection of
 county

30. The provisions for the benefit and protection of the county council of the county of Forfar (in this section called "the county

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council") contained in section 67 (For protection of county council of Forfarshire) of the Order of 1904 shall so far as applicable and unless otherwise agreed in writing between the county council and the Corporation apply and have effect with reference to such of the works by this Order authorised as may affect any highway road or bridge under the charge of the county council or any committee thereof.

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—
council of
Forfarshire.

31. The Corporation shall make full compensation to all persons (including the county council of the county of Forfar and the district committees thereof) for all damage and injury losses and expenses whatsoever which they may from time to time sustain by reason or in consequence of the bursting or giving way of the reservoir or of the conduits or lines of pipes by this Order authorised and of the flooding that may be thereby occasioned.

Compensation for
damage caused by
bursting or
giving way
of reservoir
or pipes.

32. All the costs charges and expenses of and incident to the preparing and applying for and the issue of this Order and the confirmation thereof by Parliament or otherwise in relation thereto shall be paid by the Corporation out of any moneys in their hands or out of any moneys borrowed by them under the authority of the Order of 1904 and this Order.

Costs of
Order.

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